ARTICLE III
BILL OF RIGHTS

CONCEPT OF A BILL OF RIGHTS



It is a declaration and enumeration of a person's rights and privileges which the Constitution is designed to protect against violation by the government, or by individual or groups of individuals. It is a charter of liberties for the individual and a limitation upon the power of the State.

SECTION 1

No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

“No person shall be deprived of life, liberty, or property without due process of law"

The government **cannot take away your life, freedom, or belongings** unless it follows **fair legal procedures**.

"Due process" means you have the right to:

- Be given notice of the charges or actions against you.
- Have a fair chance to defend yourself (e.g., in a trial).
- Be treated fairly according to the law.

"Equal protection of the law" means that **everyone must be treated fairly and equally by the law**, regardless of their:

Race or ethnicity, Religion, Gender, Social or economic status, Nationality, Beliefs or background

CRIMES AGAINST PERSON:

1. Homicide - Unlawfully killing another person without a qualifying circumstance for murder.
2. Murder - Unlawfully killing another person with a qualifying circumstance, such as treachery or evident premeditation.
3. Giving Assistance to suicide
4. Infanticide- Killing of a newborn baby or less than three days old
5. Abortion - Unlawfully causing or assisting in the termination of a pregnancy, as defined by law.
6. Parricide – Killing of family members or other close family members.

7. Physical Injuries – Hurting or injuring another person, such as punching or kicking them.
8. Rape – Committing sexual acts against a person under circumstances punishable by law.

9. Serious Physical Injuries – Causing injuries that result in serious harm, disability, or prolonged incapacity.

10. Slight Physical Injuries – Causing minor injuries, such as bruises, that require little or no medical treatment.

Crimes against persons are unlawful acts that harm or threaten a person's life, body, or sexual integrity. These crimes are serious violations of human rights and are treated strictly under the law.

RIGHT TO LIBERTY – the *right to exist*, our *right to be free from personal restraint or servitude*, the *right to contract*, the *right to choose one's employment*, the *right to labor.*

"The right to exist"

Every person has the right to live and not be deprived of life or freedom without lawful reason.

"The right to be free from personal restraint or servitude"

You have the right to move freely, not be imprisoned or enslaved without legal cause.
No one can force you into slavery, forced labor, or unjust imprisonment.

“The right to contract”

You can enter into legal agreements (like signing a lease, getting a job, or starting a business).

This right supports your freedom to make decisions about your personal and economic life.

“The right to choose one’s employment”

You have the freedom to choose your job or profession.
No one can force you to work a certain job against your will.

“The right to labor”

You have the right to work and earn a living through legal means.
The government must protect your right to safe and fair working conditions.

The ***Right to Liberty*** means you are free to:

Live without unlawful control
Make your own choices
Work where and how you want
Be treated with dignity as a free human being

Some criminal acts that violate a person's freedom and are punishable by law because they take away or limit a person's liberty:

1. Kidnapping – Taking or carrying away a person against their will.

2. Illegal Detention – Unlawfully preventing someone from leaving a place.

Example: A person locks another person inside a room against their will without legal authority.

3. Serious Illegal Detention – Unlawfully detaining a person under circumstances specified by law, such as certain kidnappings involving deprivation of liberty.

Example: A person abducts someone and holds them captive.

4. Coercion – Forcing someone to do something against their will through violence, threats, or intimidation.

5. Grave Threats – Threatening another person with a serious crime to intimidate or control them.

6. Unlawful Arrest – Arresting or detaining someone without legal grounds or authority, where the act meets the elements of an offense under the law.

Example: A person pretends to be a police officer and arrests someone without authority.

7. Human Trafficking – Recruiting, transporting, or harboring people for exploitation through means or circumstances prohibited by law.

Example: A recruiter deceives a person with a fake job offer and exploits them.

8. Arbitrary Detention – A public officer or employee detains someone without legal grounds, under circumstances covered by the law.

Example: A public officer unlawfully holds a person in custody without a legal basis.

These acts violate a person's freedom because they unlawfully restrict movement, force choices, use threats, o deprive someone of liberty.

RIGHT TO PROTECT OF PROPERTY

every person has the legal right to own, use, and enjoy their property, and the law must protect that property from being taken, damaged, or destroyed by others.

"Property" includes: Money, Personal belongings, Land or houses, Anything you legally own

The government and the law must ensure that no one can unlawfully take or harm your property, and anyone who does can be punished by law.

Some actions that illegally take, damage, or destroy someone else's property.

CRIMES AGAINST PROPERTY:

1. Robbery – Taking another person's property through violence, intimidation, or force.
2. Theft – Taking another person's property without permission and without using violence or intimidation.
3. Qualified Theft – Theft committed under circumstances that make it more serious under the law.
   Example: An employee entrusted with access to a workplace steals money belonging to the employer.
4. Estafa (Swindling) – Deceiving someone to obtain money or property.

5. Arson – Intentionally setting fire to property under circumstances punishable by law.

6. Malicious Mischief – Deliberately damaging another person's property without justification.
Example: A person intentionally smashes a neighbor's windows.

7. Carnapping – Taking another person's motor vehicle without consent and with intent to gain.
Example: A person steals someone else's parked motorcycle.

8. Fencing – Buying, receiving, possessing, or dealing in property known, or under circumstances indicating it is likely, to have been obtained from robbery or theft.

Example: A person knowingly buys stolen cellphones and resells them for profit.

9. Trespass to Property – Unlawfully entering or remaining in certain premises under circumstances punishable by law.

Example: A person enters another person's fenced property without permission in violation of applicable law.

10. Forgery – Falsifying a document or signature under circumstances punishable by law.

SECTION 2

The right of the people to be secure in their **persons**, **houses**, **papers**, and **effects** against unreasonable searches and seizures of whatever nature and for any purpose shall be **inviolable**, and **no search warrant or warrant of arrest** shall issue **except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized.**

RIGHTS AGAINTS UNREASONABLE ARREST,SEARCH AND SEIZURE

Every person is protected against unlawful arrest, searching, or taking of their personal belongings by the government or authorities.

Example: The police generally cannot search your house or seize your belongings without a valid search warrant, except in situations allowed by law.

SCOPE OF THE PROTECTION

1. ***PERSON*** – the protection applies to everybody, to citizens as well as aliens in the Philippines whether accused of crime or not.

Scope of Protection

PERSON

Example:
A foreign tourist visiting the Philippines is walking in a shopping mall. A police officer cannot search the tourist's bag without a valid legal basis or an applicable exception to the warrant requirement.

The right against unreasonable search and seizure protects everyone in the Philippines, including Filipino citizens and foreign nationals, whether they are suspected of a crime or not.

PERSON

Example:

Angel, a high school student, is known for her outspoken views on social issues. During a school assembly, she decides to express her opinions on climate change and the need for more sustainable practices in her school. She prepares a speech and, during her presentation, she criticizes the school's administration for not doing enough to promote recycling and reduce waste.

After the assembly, the principal calls Angel into her office and informs her that her speech was inappropriate and that she is suspended for a week due to **"disruptive behavior**." Angel believes her suspension violates her **right to a free speech**.

Determined to challenge the principal's decision, Angel reaches out to a local civil liberties organization for help. They agree to assist her in filing an appeal, arguing that her speech was a form of protected expression and that the school administration is infringing upon her rights by punishing her for voicing her opinions.

In this situation, Angel is a person within the scope of protection under the Bill of Rights. Her case raises important questions about the balance between school authority and students' rights to free speech.

2. *HOUSES* – the protection is not limited to dwelling houses but extends to a garage, warehouse, shop, store, office and even a safety deposit vault.

Legal protection for "houses" covers more than just homes.

When the law or constitution mentions **“houses”**, it doesn’t only mean places where people **live** (like your actual house or apartment).

Instead, it is interpreted more **broadly** to include **any private space** that a person uses or controls, such as:

- **Garage** – a place for storing vehicles or belongings
- **Warehouse** – a storage facility, often for business
- **Shop or store** – a commercial space for selling goods
- **Office** – a place where someone works
- **Safety deposit vault** – a secure box in a bank used to store valuables

HOUSES

Example:

Law enforcement officials suspect illegal activity in a private residence. They enter the home w/o a warrant or the home owner's consent. This action would likely violate the Fourth Amendment, which protects against unreasonable searches and seizures.

In this case, the home owner could argue that their rights were infringed upon, emphasizing the ultimate importance of privacy in one's home as outlined in the Bill of Rights.

3. *PAPERS AND EFFECT* – they include sealed letters and packages in the mail.

The phrase **“papers and effects”** refers to **personal documents and belongings**, and it is often used in the context of **legal or constitutional protection** — especially against **unreasonable searches and seizures**.
This line explains that:

- **“Papers”** include **private documents**, such as letters, files, or records.
- **“Effects”** refers to **personal property** or belongings.
- This protection **also covers sealed letters and packages in the mail**, meaning:
  - Authorities **cannot open your mail** without proper legal authorization (like a **warrant**).
  - You have a **right to privacy** even when sending or receiving mail.

PAPERS AND EFFECT

Scenario 1:
The police see James standing at a bus stop on a downtown street, in an area where there is extensive drug dealing. The officers ask James if they can look in his bag and he says yes. They open the bag and find drugs. (Yes, legal search: consent.)

What if James says no? Are the cops allowed to open his bag and search it?

Ans. **No,** not unless they have probable cause or reasonably suspect that he has a weapon immediately accessible in the bag, which is unlikely since they stopped him for drug suspicions.

The individuals may refuse and assert their rights which protects against unreasonable searches and seizures.

The individual may argue that those personal belongings should not be searched w/o a warrant or probable cause. This highlights the importance of privacy and protection of personal property as guaranteed by the Bill of Rights.

1. SEARCH WARRANT – an order in writing issued in the name of the people of the Philippines, signed by a judge and directed to a peace officer, commanding him to search for certain personal property and bring it before the court.

2. WARRANT OF ARREST – is a written order issued by the judge to arrest a person or take him into custody to make him answer for an offense in violation of a law.

Section 3. (RIGHT TO PRIVACY)

(1) The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise, as prescribed by law.

(2) Any evidence obtained in violation of this or the preceding section shall be inadmissible for any purpose in any proceeding.

EXAMPLE SCENARIO:

Normal Situation – Privacy is Protected:
Anna is a journalist. She regularly emails confidential sources and sends letters related to her investigations.

•No one — not the police, not her employer, not the government — is allowed to open, read, or intercept her **emails**, **text messages**, or **letters** without a valid **court order**.

•Her **right to privacy** in her **communications and correspondence** is protected under the Constitution.

Exception – With Lawful Court Order:
Later, Anna becomes a suspect in a serious **cybercrime case**.

- The authorities believe her messages may contain **evidence of a crime**.
- They go to a **judge** and request a **search warrant** or court order to access her emails and phone records.
- The court **reviews the evidence** and grants a **lawful order**.

✅ Now, the authorities **legally** access her communications — this is a **constitutional exception**.

LAWFUL Exception – Public Safety or Emergency:
Imagine there's a **terrorist threat** involving a planned attack, and someone is using anonymous messaging apps to communicate.

- If the government has **strong intelligence** that accessing certain communications can **prevent harm** or **protect public safety**, laws may allow it **without a court order**, but only under **strict conditions** defined by law.

✅ **“If the government has strong intelligence”**
→ The government has **serious, reliable information**, such as a **threat of terrorism**, a **planned bombing**, or **imminent violence**.

✅ **“that accessing certain communications can prevent harm or protect public safety”**
→ The authorities believe that by **checking someone's messages, emails, or calls**, they can **stop a crime** or **save lives**.

- ✅ **“laws may allow it without a court order”**

→ In very specific and **emergency cases**, some laws may **permit immediate action**, even **without waiting for a judge’s approval**.

- ✅ **“but only under strict conditions defined by law”**

→ This kind of access **is not automatic** or general — it must follow **clear legal rules**, such as:

- Only in national security threats
- Only authorized officials can approve it
- The action must be **justified**, **limited**, and **reviewed later**

This exception is meant to **balance two important things**:

1.Your right to privacy

2.The **government's duty to protect the public**
So while your communications are generally private, the government can **intervene in rare and serious cases**, **as long as it follows the law**.

Section 4. (FREEDOM OF SPEECH)

No law shall be passed abridging the ***freedom of speech***, of ***expression***, or of the ***press***, or the right of the people peaceably to ***assemble and petition*** the government for redress of grievances.

Freedom of Speech: This guarantees individuals the right to express their thoughts and ideas without government interference. It encompasses spoken words, written communication, and symbolic actions.

Freedom of Expression: This extends beyond speech to include any form of expression, such as art, music, and other creative outlets. It protects the ability to convey personal beliefs and opinions.

Freedom of the Press: This ensures that the media can report news and express opinions without censorship or punishment from the government. A free press is crucial for informing the public and holding power accountable.

Right to Assemble: This allows individuals to gather peacefully for various purposes, such as protests, rallies, or meetings. The emphasis on "peaceably" indicates that while people can come together, they must do so without violence or disorder.

Right to Petition the Government: This grants people the ability to make complaints or seek assistance from the government. It includes the right to advocate for changes in laws or policies.

Section 5. (THE RIGHT TO FREEDOM OF RELIGION AND BELIEF)

No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof. The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights.

Section 6. (FREEDOM OF MOVEMENT)

The liberty of abode and of changing the same within the limits prescribed by law shall not be impaired except upon lawful order of the court. Neither shall the right to travel be impaired except in the interest of national security, public safety, or public health, as may be provided by law.

Section 7. (RIGHT TO INFORMATION)

The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

Section 8.(RIGHT TO FORM ASSOCIATION)

The right of the people, including those employed in the public and private sectors, to form unions, associations, or societies for purposes not contrary to law shall not be abridged.

Section 9. (RIGHT TO JUST COMPENSATION)

Private property shall not be taken for public use without ***just compensation***.

Section 10.(NON-IMPAIRMENT CLAUSE

No law impairing the obligation of contracts shall be passed.

This means that the government cannot pass a law that unfairly changes or weakens the obligations of a valid contract.

Example: If you sign a valid contract to rent a house for one year at an agreed price, the government generally cannot pass a law that changes the agreed rental terms of that existing contract.

Section 11.(FREE ACCESS TO COURT)

Free access to the courts and quasi-judicial bodies and adequate legal assistance shall not be denied to any person by reason of poverty.

Section 12.(RIGHT OF PERSON UNDER CUSTODIAL INVESTIGATION)

(1) Any person under investigation for the commission of an offense shall have the right to be informed of his right to remain silent and to have competent and independent counsel preferably of his own choice. If the person cannot afford the services of counsel, he must be provided with one. These rights cannot be waived except in writing and in the presence of counsel.

(2) No torture, force, violence, threat, intimidation, or any other means which vitiate the free will shall be used against him. Secret detention places, solitary, incommunicado, or other similar forms of detention are prohibited.

(3) Any confession or admission obtained in violation of this or Section 17 hereof shall be inadmissible in evidence against him.

If the police force a suspect to confess to a crime through threats or torture, that confession cannot be used as evidence against the suspect.

(4) The law shall provide for penal and civil sanctions for violations of this section as well as compensation to and rehabilitation of victims of torture or similar practices, and their families.

If a police officer tortures a suspect, the officer may face criminal and civil penalties, while the victim may be entitled to compensation and rehabilitation. Those who commit torture must be held accountable, and victims and their families deserve help and support.

Section 13. (THE RIGHT TO BAIL AND AGAINST EXCESSIVE BAIL)

All persons, except those charged with offenses punishable by ***reclusion perpetua*** when evidence of guilt is strong, **shall, before conviction, be bailable by sufficient sureties, or be released on recognizance as may be provided by law.** The right to ***bail*** shall not be impaired even when the privilege of the writ of habeas corpus is suspended. Excessive bail shall not be required.

"All persons, except those charged with offenses punishable by reclusion perpetua when evidence of guilt is strong..."

- Reclusion perpetua is a very serious punishment (like life imprisonment).

- If you are charged with a crime punishable by reclusion perpetua (e.g., murder, drug trafficking), and the evidence of your guilt is strong, you may not be allowed to post bail.

...shall, before conviction, be bailable by sufficient sureties, or be released on recognizance as may be provided by law."

- If you're charged with a less serious crime, or the evidence isn't strong, you have the right to bail before you're convicted.

- Bail can be:
  - Paid with money or property (called surety).
  - Or you may be released without paying, based on a promise to return for trial (recognizance), especially for poor or low-risk individuals.

Most people have the right to bail before being convicted, unless they are charged with very serious crimes like those punishable by **reclusion perpetua** and the **evidence is strong**.

Even during emergencies, this right **cannot be taken away**, and the court **cannot require excessive bail** just to keep someone in jail.

This protects the **presumption of innocence** — that everyone is innocent until proven guilty.

Section 14.(RIGHTS OF THE ACCUSED)

(1) No person shall be held to answer for a criminal offense without due process of law.

(2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused provided that he has been duly notified and his failure to appear is unjustifiable.

The rights of the accused are the legal protections given to a person charged with a crime to ensure a fair trial and prevent injustice.

These include:

- Right to be presumed innocent – A person is considered innocent until proven guilty.
- Right to remain silent – The accused cannot be forced to testify against themselves.
- Right to a lawyer – The accused has the right to legal assistance.
- Right to a fair and speedy trial – The case must be heard fairly and without unreasonable delay.
- Right to know the charges – The accused must be informed of the crime they are accused of committing.
- Right to confront witnesses – The accused can question witnesses presented against them.

Section 15. (THE WRIT OF HABEAS CORPUS)

The privilege of the writ of habeas corpus shall not be suspended except in cases of invasion or rebellion when the public safety requires it.

The Writ of Habeas Corpus is a court order requiring authorities to bring a detained person before the court and explain the legal reason for their detention.

Example: If a person is arrested and detained illegally, their family may ask the court to issue a writ of habeas corpus to question the legality of the detention.

This protects people from unlawful detention and helps ensure that no one is deprived of their freedom without legal justification.

The government **cannot arrest and detain people without reason**, unless there is **an invasion or rebellion**, and it is truly **necessary to protect the public**.
The **right to challenge illegal detention (habeas corpus)** is **very important**, and **can only be suspended in extreme cases**.

Eg. Mr. Ramos is arrested w/o clear charges and held in custody for several days.

Question: Is Mr. Ramos' family can file a writ of habeas corpus in court?

The court then orders law enforcement to present Mr. Ramos before a judge to determine if the detention is justified.

If the judge finds the detention unlawful, Mr. Ramos would be released.

Section 16. THE RIGHT TO A SPEEDY DISPOSITION OF CAUSES

All persons shall have the right to a speedy disposition of their cases before all judicial, quasi-judicial, or administrative bodies.

Section 17. (THE RIGHTS AGAINST SELF-INCRIMINATION

No person shall be compelled to be a witness against himself.

This protects individuals from being forced to testify in a way that could incriminate themselves. This principle ensures that people have the right to remain silent and not provide evidence that could lead to their own prosecution. It upholds that the idea that the burden of proof lies with the government, not the individual.

Section 18.(THE RIGHT TO POLITICAL BELIEFS AND ASPIRATIONS)

(1)No person shall be detained solely by reason of his political beliefs and aspirations.

(2) No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted.

Section 19.(THE PROHIBITIONS AGAINST CRUEL, DEGRADING OR INHUMAN PUNISHMENT)

(1)Excessive fines shall not be imposed, nor cruel, degrading or inhuman punishment inflicted. Neither shall the death penalty be imposed, unless, for compelling reasons involving heinous crimes, the Congress hereafter provides for it. Any death penalty already imposed shall be reduced to reclusion perpetua.

(2) The employment of physical, psychological, or degrading punishment against any prisoner or detainee or the use of substandard or inadequate penal facilities under subhuman conditions shall be dealt with by law.

"Excessive fines shall not be imposed..."

- The government **cannot charge you unfairly large fines** for breaking the law.
- Fines must be **proportionate** to the offense — not abusive or unreasonable.

"The employment of physical, psychological, or degrading punishment..."

- This means it is **forbidden to harm prisoners or detainees** in any of the following ways:
  - **Physical**: Beating, torture, or any kind of bodily harm.
  - **Psychological**: Mental abuse, threats, isolation, humiliation.
  - **Degrading**: Treatment that humiliates or disrespects a person's human dignity.

Even though someone is in jail, they still have **human rights** and must be treated with respect.

...against any prisoner or detainee..."

- This protection applies to **all** people in custody:
  - **Prisoners**: Already convicted of a crime.
  - **Detainees**: Still awaiting trial or investigation.

Even if someone is just suspected of a crime, they must not be abused or mistreated.

Section 20.(NON IMPRISONMENT OF DEBTS.

No person shall be imprisoned for debt or non-payment of a poll tax.

Section 21. DOUBLE JEOPARDY CLAUSE

No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction or acquittal under either shall constitute a bar to another prosecution for the same act.

The Double Jeopardy Clause means that a person cannot be tried or punished twice for the same offense after a valid acquittal or conviction, subject to the rules and exceptions provided by law.

Example: If a person is found not guilty of theft by a court with proper jurisdiction, the person generally cannot be tried again for the same offense.

A person should not face the same criminal case twice after a valid final judgment

Section 22. NO EX POST FACTO LAW OR BILL OF ATTAINDER

No ex post facto law or bill of attainder shall be enacted.

An ***ex post facto law*** is a law that retroactively changes the legal consequences of actions that were committed, or relationships that existed, before the enactment of the law.

A law that punishes an act that was not a crime when it was committed, or makes the punishment harsher retroactively.

Example: A person legally parks in a certain area today. Tomorrow, a new law makes that past parking act a crime and punishes the person for it.

Bill of Attainder – A law that declares a specific person or group guilty and punishes them without a judicial trial.

Example: Congress passes a law declaring a named person guilty of a crime and ordering their imprisonment without a court trial.

The government cannot punish people retroactively through criminal laws or declare them guilty and punish them without a judicial trial.

THANK YOU



